PROMISE & PRACTICE · DEEP DIVE · SOURCE ANALYSIS

Convict Leasing — A House Divided

Slavery by Another Name

Name: _____ **Period:** _____ **Date:** _____

WHAT I CAN DO TODAY I can read primary sources about Convict Leasing — A House Divided, weigh who made each one and why, and use evidence to answer historical questions.

Directions. The best historians connect threads. See how one clause ties this whole unit together

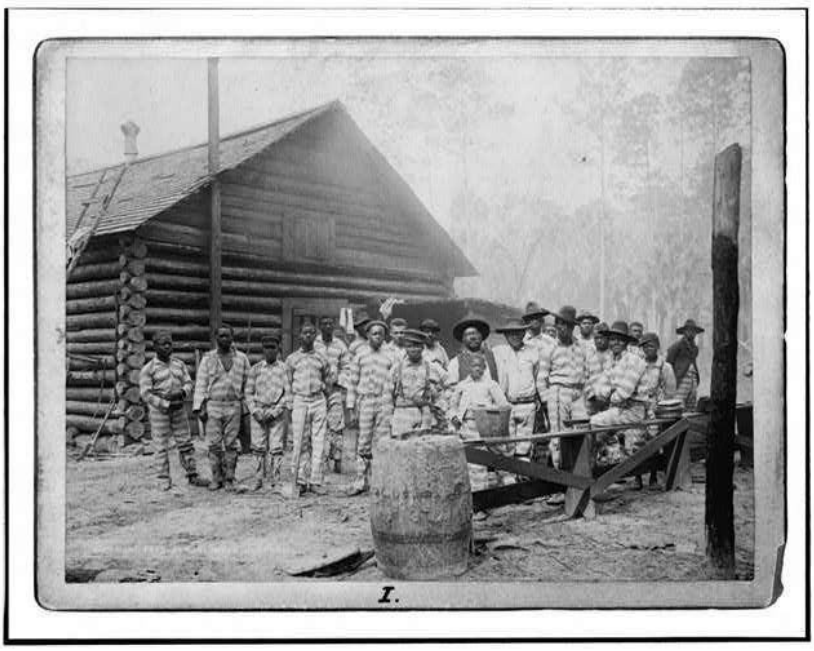
THE SOURCES

SOURCE · THE CLAUSE AND THE SYSTEM — From eleven words to a system

> *13th Amendment: "Neither slavery nor involuntary servitude, except as a punishment for crime whereof the party shall have been duly convicted …" Convict leasing: states used vague laws (vagrancy, loitering) to convict Black Southerners, then leased them to companies for unpaid labor in mines, fields, and railroads — often under conditions deadlier than slavery.*
> *— summarized from the historical record. Public domain*

— summarized from the historical record. Public domain.

THE IMAGE — A convict labor gang



Convict laborers on a Southern farm — photograph, early 20th century, public domain (Library of Congress).

YOUR WORK

QUESTION 1 STEP 1 · THE LOOPHOLE

Explain how the exact wording of the 13th Amendment made convict leasing possible. Which eleven words were the key?

QUESTION 2 STEP 2 · THE MACHINERY

How did states produce the convicts whose labor they leased out?

- ☐ A. they asked for volunteers
- ☐ B. they used broad, vague laws (like vagrancy) to arrest and convict people at will
- ☐ C. they only arrested violent criminals
- ☐ D. they freed all prisoners

QUESTION 3 STEP 3 · CONNECT THE UNIT

Convict leasing links to the 13th Amendment, to the Redeemer governments, and even to the prison-farm recordings in “Songs of the Enslaved.” In your own words, explain how these threads connect.

QUESTION 4 STEP 4 · WHY IT MATTERS

A historian called convict leasing “slavery by another name.” In three or four sentences, explain whether you think that phrase is fair — and what this history teaches about how hard-won freedom can be undermined.

TEACHER ANSWER KEY — Convict Leasing — A House Divided

QUESTION 1: Open response.

Look for a response along the lines of: "The 13th Amendment banned slavery except..., so states could..."

QUESTION 2: **Correct — B. they used broad, vague laws (like vagrancy) to arrest and convict people at will**

Right. Broad, vague laws like 'vagrancy' let officials arrest and convict Black Southerners almost at will — manufacturing the prisoners the system needed.

QUESTION 3: Open response.

Look for a response along the lines of: "The 13th Amendment's loophole led to..., which the Redeemers used to..., and the music of those prison farms shows..."

QUESTION 4: Open response.

Look for a response along the lines of: "The phrase 'slavery by another name' is ___ because..."